

Estate Sale Agreement

This Estate Sale Agreement ("Agreement"), effective on _____ ("Effective Date") is entered into by and between True Legacy Estate Sales, LLC and affiliates ("TLES") and _____ ("Client"). TLES and Client are collectively referred to as the "Parties" and individually as a "Party."

TLES agrees to conduct an estate sale at the following address: _____ ("Premises"), for the purpose of liquidating the personal property of _____ ("Property"). TLES will begin staging the home on _____. The estate sale will be conducted on the following days: _____.

TLES will deliver a "Broom Clean" home by end of day _____. **Initial**

WHEREAS, the Parties to this Agreement have agreed that Client will provide TLES a key and full access to the Premises and Property for the purpose of staging for one week prior to the estate sale unless otherwise agreed upon;

WHEREAS, in order to set forth the ongoing arrangements the Client must have homeowners insurance from staging, performance, and five (5) business days after conclusion of the estate sale ("Estate Sale Cycle"); and

WHEREAS, Client understands and acknowledges TLES are the only individuals allowed on Premises during the Estate Sale Cycle, unless both Parties agree in advance.

NOW, THEREFORE, in consideration of the mutual promises and obligations contained herein, the Parties agree as follows:

1.0 FEES, PRICING, INVENTORY, PAYMENT, AND HAZARDOUS

1.1 Fees. There will be no upfront charges and TLES will be paid from the Gross Revenue (defined below). TLES will cover all marketing expenses. Gross Revenue is determined by sum total of all cash, debit, and credit transactions less credit card processing fees and city mandated sales tax, charged on all transactions (cash/debit/credit - credit card fees - sales tax = Gross Revenue). TLES shall be paid \$ _____ as a minimum fee and 30% of the remaining Gross Revenue.

Other Terms: _____

Gross Revenue will be commissioned as follows: (i) TLES shall collect 30% commission of the Gross Revenue above the minimum; and (ii) Client shall collect 70% of the Gross Revenue above the minimum.

After staging begins, all items removed from the Premises must be disclosed to TLES, unless agreed upon in writing by both parties prior to signing this Agreement. In the event that Client removes any items not disclosed or agreed upon prior to signing this Agreement, TLES shall reserve the right to postpone or cancel the sale. TLES and associates shall not be held responsible in any way for items, which should have been removed, that are sold, lost, damaged, or stolen. The Client is solely responsible to secure such items.

A 10% fee will be charged on all cash found by TLES.

1.2 Vehicles. Client must provide the clear title and signed bill of sale before the estate sale begins. If the client does not have the signed title, there will be a duplicate title processing fee of \$400. TLES shall collect



30% commission on vehicles sold up to \$6,000; 25% commission on vehicles sold for \$6,001 to \$10,500; 20% commission on vehicles sold for \$10,501 to \$15,000; and 15% commission on vehicles sold for \$15,001 and up. _____ **Initial**

1.3 Donation. After the Estate Sale, all usable, unbroken personal property will be donated to the Salvation Army or Goodwill. TLES reserves the right to donate to either Salvation Army or Goodwill based on the organization's availability and location. The donation receipt will be made out in the name of the Client. Salvation Army and Goodwill reserve the right to refuse any item at their sole discretion. TLES will pack, load and transport the items to the nearest location. There will be no fee for the first load.

For each subsequent load, there will be a fee of \$400 for a ½ load and \$700 for a full load. The Client may opt out of TLES donation services.

1.4 Debris Removal & Fees. There is an additional fee for TLES to remove all items not sold or donated at the estate sale. If Client agrees to hire TLES to remove such items then the cost for this service will be deducted from the proceeds to be paid to Client. Hazardous materials will not be removed. The fee per load is \$600 for a ½ load and \$1,000 for a full load. The Client may opt out of TLES debris removal and coordinate their own debris removal. In the event that debris removal is cancelled, TLES will not be responsible to leave the home broom clean.

1.5 Pricing. The primary objective of TLES is to sell ALL personal property. Our second objective is to sell the personal property for as much as possible. Pricing of each item is in accordance to the fair market value for estate sale items sold in Premises County ("Value"). This Value is contingent upon several variables, including but not limited to parking, environment, location, time, convenience, demand, condition, weather, un-foreseen conditions, events, and more. Client understands and agrees that TLES has complete authority to determine/set the Value of each item and sell each item without any approval from the Client. TLES reserves the right to refuse the sale of any item at their sole discretion. Client may place a minimum price on up to, but no more than 5 items.

By signing this Agreement, Client agrees and understands Client is waiving any rights to dispute the Value of any item sold, as TLES has complete authority to determine the Value of each item and sell each item accordingly. _____ **Initial**

1.6 Pricing Last Day of Estate Sale. On the last day of the estate sale, any and all unsold items are reduced in price. Prices may be reduced by as much as fifty percent (50%) or more depending on the likelihood of item being sold. Client understands and agrees that TLES has complete authority to reduce the price without any notice to and/or approval from the Client. _____ **Initial**

1.7 Payment and Final Invoice. TLES will provide a final invoice indicating the Gross Proceeds and Net Share to client minus all applicable fees and commission. The final invoice will include sales statistics from 3 different times frames: the opening 2 hours, opening day, and the entire sale. The sales statistics provided will be: gross sales, number of transactions, and average purchase amount. The final invoice will NOT include an itemized list of personal property that has been sold. TLES will not inventory the personal property. TLES will provide a check or Direct Deposit to the Client for the Gross Revenue of the estate sale minus all applicable fees and commissions, twenty-one (21) days after the completion of the estate sale. All checks will be (i) mailed to the Client at the mailing address given below. _____ **Initial**

1.8 Hazardous Materials. TLES will not remove anything containing chemical, toxic, medical, radioactive, or hazardous materials. Hazardous materials, include but are not limited to: paint, pesticides, solvents, and



such. TLES does not dispose of pressurized containers of any kind or anything that TLES suspects to be related to unlawful activity.

2.0 TERM AND TERMINATION

2.1 Term. This Agreement is effective for forty-five (45) days from the Effective Date unless otherwise agreed upon in writing by both Parties.

2.2 Termination. Client may terminate this Agreement at any time before TLES begins to stage the estate sale at no cost. If Client terminates this Agreement once TLES has begun the estate sale staging then Client must pay a termination fee of \$1,000.00. _____ **Initial**

3.0 CLIENT RESPONSIBILITIES AND OBLIGATIONS

3.1 Items Left At Premises. Client understands any items left at the Premises will be sold, donated, and/or removed. Therefore, Client must remove all items from the Premises, which s/he desires to retain.

If any items are not to be sold, donated, or removed, they must be relocated to a secured and locked room. It is the full responsibility of the Client to ensure all items are secured and locked in the designated room.

TLES will assist in the installation of keyed door hardware. Client must provide the desired keyed door hardware on or before the initial staging walkthrough. Client must retain the key and the key should NOT be in the TLES lockbox.

Client shall label all major appliances, cable routers, security cameras as “Not For Sale” if they are not to be sold.

Client shall disconnect all major appliances that are to be sold, including but not limited to gas ranges, refrigerator with water line, dishwasher, washer and gas dryer.

_____ **Initial**

3.2 Client Not Permitted On Premises. Neither Client nor any of Client’s representative(s)/agent(s)/family are allowed onto the Premises during the Estate Sale Cycle while TLES employees are present for any reason except: (i) Legacy Review, designated family walkthrough the Thursday prior to the Estate Sale Opening to the public; direct family members may remove select items that may have been missed or have sentimental value, a list and photo of all items removed must be emailed to TLES office. (ii) on Monday following the Estate Sale to remove any items prior to donation; (iii) to secure the Premises daily; (iv) to remove stored items that are being kept by the Client and were listed before this Agreement was fully executed; (v) to do yard and/ or property maintenance, which does not interfere with the Estate Sale Cycle; and (vi) to collect mail; (vii) TLES has agreed in writing. **Client understands security of the Premises is solely the Client’s responsibility.** _____ **Initial**

3.3 Insurance. Client must have insurance to cover any theft, loss, and/or damage to the Premises and/or Property throughout the entire Estate Sale Cycle.

3.4 Duty of Care. The Client is solely responsible to keep the Premises in a reasonably safe condition. Client owns/leases/occupies/controls Premises and it is solely the Client’s responsibility to use reasonable care to discover any unsafe conditions and to repair, replace, or give adequate warning of anything that could be reasonably expected to harm others. _____ **Initial**

4.0 TLES RESPONSIBILITIES AND OBLIGATIONS

4.1 Marketing. TLES may pay to advertise the estate sale through the following channels: (i) on-line, (ii) email blast to TLES' extensive customer list, (iii) posted signs.

4.2 Shoppers. TLES will work to bring as many shoppers as possible through the estate sale. Through the various marketing channels TLES will allow any and all potential shoppers into the home.

4.3 Heavy/Bulky Items and Appliances. TLES may need to disassemble large or heavy items to have them relocated to the ground floor for the Estate Sale. TLES will not disconnect any major appliance or device that is hard wired, connected to natural gas, propane or water.

4.4 Damage to the Home. Client understands and agrees that occupied homes have existing damage to floors, walls and cabinetry that may not be clearly visible until the home is emptied.

4.5 Cleaning. After the estate sale, remaining items will be (i) removed, (ii) discarded, and/or (iii) donated to a charitable organization and the garage and living space will be left broom clean. In the event that debris removal is cancelled, TLES will not be capable nor responsible to leave the home broom clean.

5.0 REPRESENTATIONS, DISCLAIMERS, INDEMNIFICATION, AND CONFIDENTIALITY

5.1 Representations. Each Party represents that it has validly entered into this Agreement and has the legal power to do so.

5.2 Indemnification. TLES is not liable for any losses, claims, actions, demands, costs, expenses, damages, or liability of any kind. Client agrees to defend, indemnify, and hold harmless TLES against any claim or loss resulting from Client's breach of its obligations under this Agreement.

5.3 Confidential Information. It is the duty of the Client to remove all confidential information.

6.0 GENERAL

6.1 Arbitration and Consent to Jurisdiction. If a dispute arises out of or relates to this Agreement, or the breach thereof, and if the dispute cannot be settled through negotiation, the Parties agree first to try in good faith to settle the dispute by mediation administered by the American Arbitration Association under its Commercial Mediation Procedures before resorting to arbitration. If the matter is not resolved through mediation then it shall be submitted to binding arbitration for any dispute, controversy, or claim between the Parties (or their respective heirs, successors, assigns or affiliates) arising out of, relating to, or in connection with this Agreement, regardless of whether such dispute is based upon fiduciary duty, tort, contract, statute, regulation or otherwise. The arbitration shall be conducted in accordance with the Rules for Commercial Arbitration of the American Arbitration Association.

The seat of the arbitration shall be in the County of the Premises. The decision of the arbitrator shall be final and binding on each of the Parties and judgment thereon may be entered in any court having jurisdiction. Notices should be addressed to TLES main corporate office: True Legacy Homes at 12520 High Bluff, Suite 285,



San Diego California 92130 attn.: CEO, Paul Williamson with a copy to attn.: Jeff Stordahl. Except as otherwise specified in this Agreement, all notices related to this Agreement will be in writing and will be effective upon (a) personal delivery, (b) the second business day after mailing, or (c), except for notices of termination or an indemnifiable claim (“Legal Notices”), which shall clearly be identifiable as Legal Notices, the day of sending by email. Billing-related notices to Client will be addressed to the relevant billing contact designated by Client.

6.2 Entire Agreement. This Agreement is the entire agreement between the Parties and supersedes all prior and contemporaneous agreements, proposals or representations, written or oral, concerning its subject matter. Except as otherwise provided herein, no modification, amendment, or waiver of any provision of this Agreement will be effective unless in writing and signed by the Party against whom the modification, amendment, or waiver is to be asserted.

6.3 Assignment. Neither party may assign any of its rights or obligations hereunder, whether by operation of law or otherwise, without the other Party’s prior written consent (not to be unreasonably withheld); provided, however, either Party may assign this Agreement in its entirety, without the other Party’s consent to its Affiliate or in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets.

6.4 Relationship of the Parties. This Agreement does not create a partnership, franchise, joint venture, agency, fiduciary, or employment relationship between the Parties. There are no third-party beneficiaries under this Agreement.

6.5 Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be contrary to law, the provision will be deemed null and void, and the remaining provisions of this Agreement will remain in effect.

6.6 Advice of Counsel. EACH PARTY ACKNOWLEDGES THAT, IN EXECUTING THIS AGREEMENT, SUCH PARTY HAS HAD THE OPPORTUNITY TO SEEK THE ADVICE OF INDEPENDENT LEGAL COUNSEL AND HAS READ AND UNDERSTOOD ALL OF THE TERMS AND PROVISIONS OF THIS AGREEMENT. THIS AGREEMENT SHALL NOT BE CONSTRUED AGAINST ANY PARTY BY REASON OF THE DRAFTING OR PREPARATION HEREOF.

[SIGNATURE PAGE FOLLOWS]

COMPANY:

TLES Signature: _____ Date: _____

Print Name & Title: _____

CLIENT:

I have read and understand the foregoing Agreement and I accept and agree to the provisions it contains and hereby execute it voluntarily; and I am authorized to enter into this Agreement.

Client Signature: _____ Date: _____

Client Name: _____

Address: _____

City: _____ State: _____ Zip: _____

Phone: _____ Email: _____

Make Check Payable to: _____

Mailing Address: _____

City: _____ State: _____ Zip: _____

Summary of Terms & Additional Terms

Fee: _____

Disposal Fee: _____

Additional Terms: _____